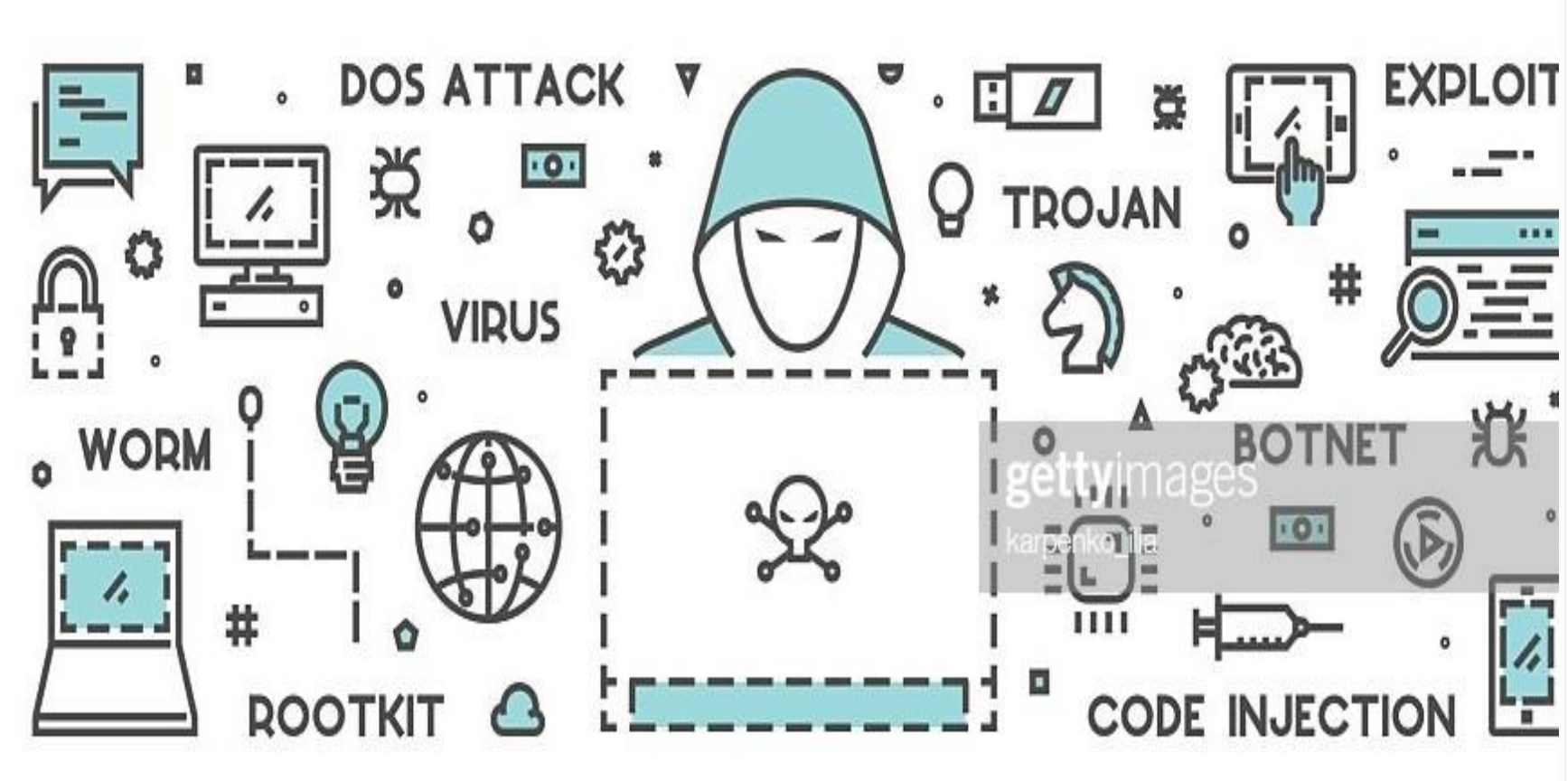
CYBERCRIMES: A Legal Challenge?



By Dr. Balraj K. Sidhu
Rajiv Gandhi School of Intellectual Property Law
Indian Institute of Technology, Kharagpur

Challenges of Cybercrime

- Scale
- Accessibility
- Anonymity
- Portability and transferability
- Global/Transboundary nature



Application of Criminal Law?

- Traditional criminal law found to be ill-suited – nature of problem
- ***R v Gold*** (1988): to charge under section 1 of the Forgery and Counterfeiting Act 1981.
- House of Lords upheld the acquittal. Lord Brandon said:

We have accordingly come to the conclusion that the language of the Act was not intended to apply to the situation which was shown to exist in this case…**The Procrustean attempt to force these facts into the language of an Act not designed to fit them produced grave difficulties** for both judge and jury which we would not wish to see repeated. The appellants' conduct amounted in essence, as already stated, to dishonestly gaining access to the relevant Prestel data bank by a trick. That is not a criminal offence. If it is thought desirable to make it so, that is a matter for the legislature rather than the courts.

- Advent of specialized laws dealing with cybercrime – US Computer Fraud and Abuse Act 1984; UK's Computer Misuse Act 1991

Defining Cybercrime

- Interestingly, **'cybercrime'** is undefined term – often interchangeably used as 'computer crime', 'high-tech crime', 'digital crime', 'electronic crime' and 'technology-enabled crime.
- Encompasses three categories of offence:

  (1) crimes in which the computer or computer network is the target of the criminal activity, for example, hacking, malware and 'denial of service' attacks;

  (2) existing offences where the computer is a tool used to commit the crime; for example, child pornography, harassment, and fraud; and

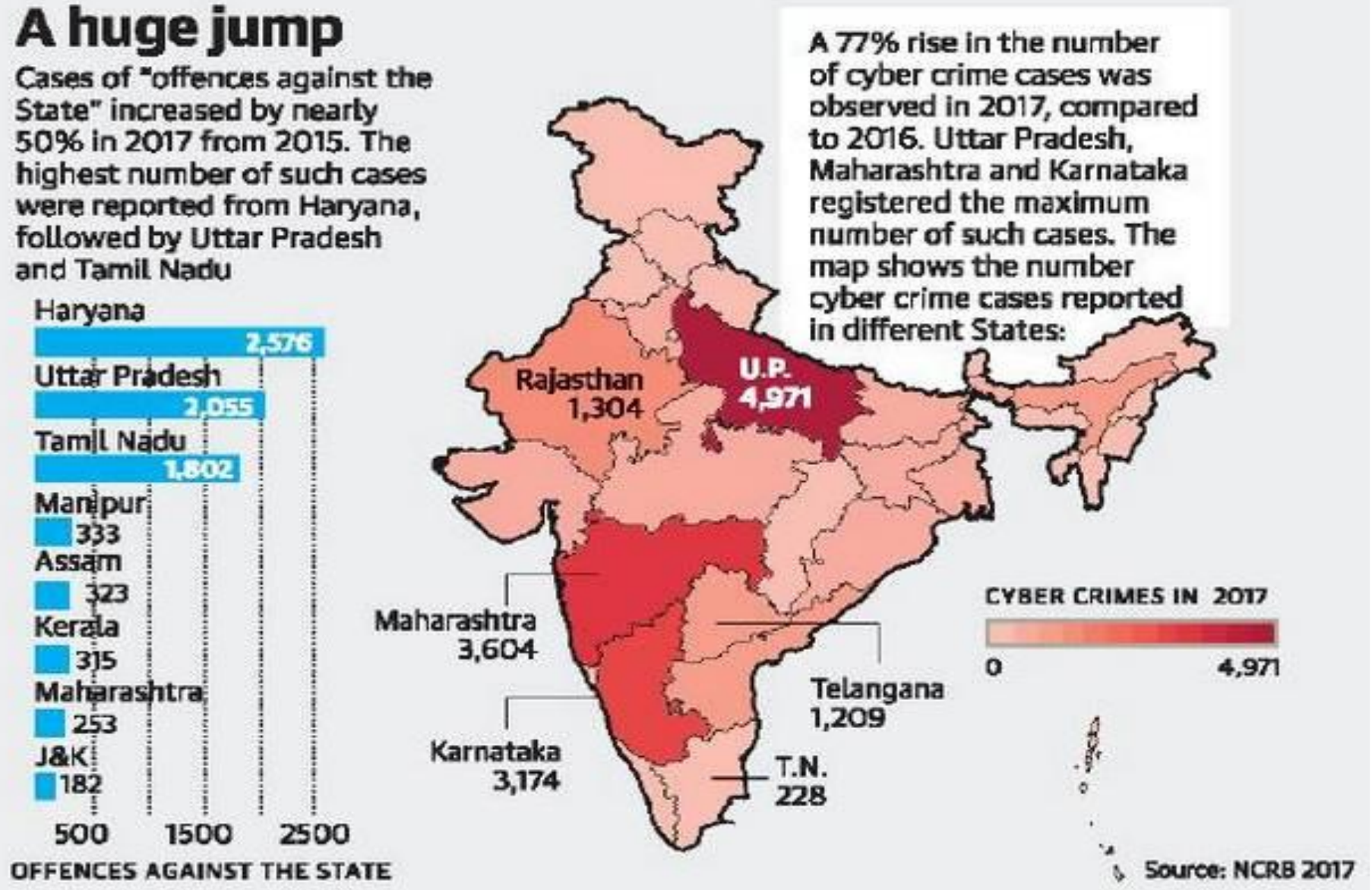
  (3) crimes in which the use of the computer is an incidental aspect of the commission of the crime but may afford evidence of it; for example, SMS messages retrieved from the mobile phone of a murder victim.

CoE Convention on Cybercrime

- First multilateral treaty on cybercrime.
- 64 State Parties (European and Non-European)
- Encompass issues of substantive and procedural law, as well as international co-operation.
- **4 broad categories of offences**:

1. Offences against the confidentiality, integrity, and availability of computer data and systems [illegal access; illegal interception; data interference]
2. Computer-related offences [fraud and forgery]
3. Content-related offences [child pornography]
4. Copyright infringement

Recent Trends



Cyber-contravention & Cyber-offences

Under IT Act 2000

Cyber Contraventions	Cyber Offences
Chapter IX of the Act – penalties, compensation and adjudication	Chapter XI- offences
Sections – 43 (a) to 43 (j); 43A; 44-45	Sections – 65-74
Deals primarily with unauthorized access to computer, computer system or computer network or computer resource	Deals primarily with unauthorized access to computer, computer system or computer network or computer resource related serious offences [Requirement of Intent or *Mens rea*]
Civil prosecution	Criminal prosecution
Judicial proceeding before the AO or competent court (sec.46 – pecuniary jurisdiction)	Judicial proceedings to be held before the appropriate Court – as per the nature of the offence – whether cognizable or non-cognizable (sec. 77B)
Power to investigate any contravention lies with Controller or any officer authorized by him (sec. 28)	Power to investigate any offence lies with police officer not below the rank of Inspector (sec. 78)
Offender liable to pay damages by way of penalty and compensation to the person affected	Offender punishable with imprisonment term or fine or with both
Compounding of contraventions [sec.63]	Compounding of offences to a limited extent [sec. 77A]

Section 43-I

- If any person **without permission** of the owner or any other person who is in charge of a computer, computer system or computer network –

(a) **accesses or secures access** to such computer, computer system or computer network or computer resource [added by 2009 amendment];

- What does '**access**' implies? [sec.2(1)(a)]
- "**Unauthorized**" is imp. ingredient [establishing ownership]
- Unauthorized use by authorized users – *R v. Bignell* (1998)
- *R v. Bow Street Magistrate Court, ex Allison* (1999)- access is unauthorized if a person –
  - Is not himself entitled to control access of the kind in question to the program or data; and
  - He does not have consent to access by him of the kind in question to the program or data from any person who is so entitled

Section 43-II

(b) **downloads, copies or extracts** any data, computer data base or information from such computer, computer system or computer network including information or data held or stored in any removable storage medium.

- Takes care of copyright protection in the digital medium. It is about digital content rights

Downloading	Copying	Extraction
Retrieving a file (digital content) from a remote computer, computer system or computer network	Retrieving a file (digital content) from a remote computer, computer system or computer network and then saving it on either computer's hard disk or any removable storage medium	Retrieving a file (digital content) from a remote computer, computer system or computer network and then selectively extract part of the digital content

Section 43-III

(c) introduces or causes to be introduced any **computer contaminant or computer virus** into any computer, computer system or computer network;

- Explanation (i) defines computer contaminant; Explanation (iii) computer virus

(d) **damages or causes to be damaged** any computer, computer system or computer network, data, computer data base or any other programmes residing in such computer, computer system or computer network

- Explanation (iv) – means to destroy, alter, delete, add, modify or rearrange any computer resource by any means
- For e.g. - 'A' student handling training & placement cell- using official email account- changed the password – rendering the account unusable for several days resulting job loss to candidates.

Section 43-IV

(e) **disrupts or causes disruption** of any computer, computer system or computer network;

- Disruption implies unexpected deviation in the normal/standard operations of a computer, computer system or computer network [sort of malfunction – to be read with clause (c & d)]

(f) **denies or causes the denial of access** to any person authorized to access any computer, computer system or computer network by any means

- Denial of Service or Distributed Denial of Service (DDoS)
- Attack or intrusion designed for use against computers connected to the Internet where by one user can deny service to other legitimate users simply **by flooding the site with so much useless traffic that no other traffic can get in or out**.

Section 43-V

(g) provides any **assistance to any person to facilitate access** to a computer, computer system or computer network in contravention of the provisions of this Act, rules or regulations made thereunder

- Sweep of the clause is quite broad

(h) charges the services availed of by a person to the account of another person by tampering with or manipulating any computer, computer system, or computer network

- Idea is to prevent theft, misappropriation, fraud or forgery of access code/user id/password, etc. by a person to the account of another person by tampering with or manipulating

(i) destroys, deletes or alters any information residing in a computer resource or diminishes its value or utility or affects it injuriously by any means [2009 amendment]

- Old version of sec.66 (hacking)

Section 43-VI

(j) Steals, conceals, destroys or alters or causes any person to steal, conceal, destroy or alter any computer source code used for a computer resource with an **intention** to cause damage [2009 amendment]

- This is the only clause under sec. 43 which falls in the category of 'pre-mediated' cyber contravention.

Section 66 &43

Section 43	Section 66
Unauthorized access to a computer, computer system or computer network of computer resource	Unauthorized access **with dishonest or fraudulent intent** to a computer, computer system or computer network of computer resource
Essential Ingredient:	*Essential Ingredient:*
Unauthorized access without any criminal intent on the part of doer	Section 24 IPC defines Dishonestly - Whoever does anything with the intention of causing **wrongful gain to one person or wrongful loss** to another person, is said to do that thing "dishonestly" Section 25 IPC defines Fraudulently - A person is said to do a thing fraudulently if he does that thing with **intent to defraud** but not otherwise

Problem-I

Ram had been a web producer for SDTv in Delhi before his job ended in October 2019 following a dispute with managers. Later, in an online chatroom frequented by members of Anonymous he disclosed the username and password for a server owned by the Tribune Co. – the parent co. to SDTv and Tribune Newspaper. He encouraged members to use the credentials.

A hacker known as 'Sharpie' used the credentials to superficially alter The Tribune news story.

Identify sections attracted under the IT Act 2000.

Problem-II

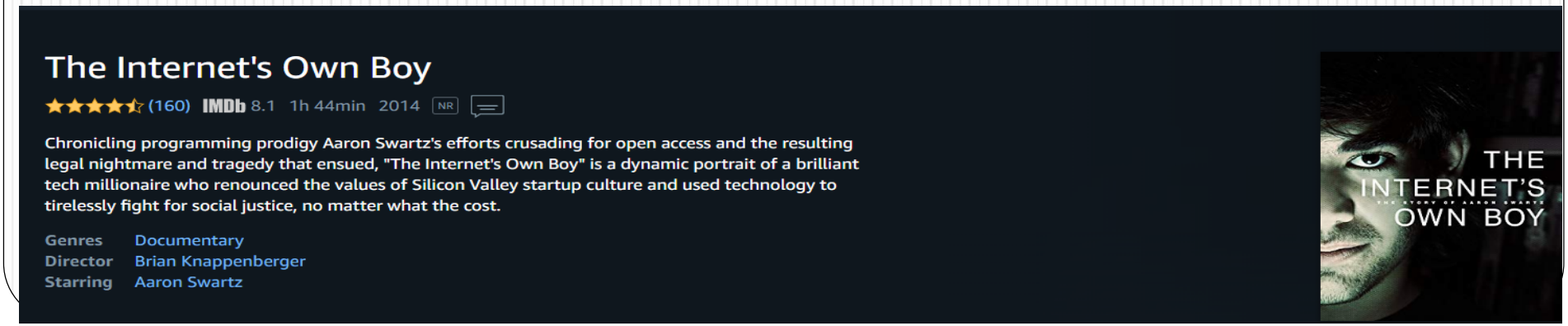
Ajay was a programmer for IndiaBulls who helped develop its high-speed trading software. Shortly before leaving his job, he downloaded the code he would have written for the company.

Identify sections attracted under the IT Act 2000.

During the trial, his lawyer pleaded defense that he'd only intended to download open source software files on which he had worked; his collection of a small amount of proprietary code in addition to that had been inadvertent.

The Case of Aaron Swartz

- Charged for allegedly breaching hacking laws by downloading millions of academic articles from a subscription database (J-Stor) via an open connection at MIT.
- He was booked under the Computer Fraud & Abuse Act (CFAA) of 1986.
- CFAA can make breaking a code of conduct or violating a social network's Terms of Service into a felony, which in effect gives private companies the ability to set the definitions of criminality wherever a computer is involved.
- Facing dwindling legal funds and up to 35 years in prison, Swartz **committed suicide.**



Section 65

- Tampering with computer source documents –
- ***Syed Asifuddin v. State of AP (2006)***

Facts: Tata Indicom employees arrested for manipulation of the electronic 32-bit number (ESN) programmed into cell phones that were exclusively franchised to Reliance Infocomm. Handsets were technologically locked as it would work only with Reliance Infocomm services. Tata Indicom employees re-programmed the handset as it could work with their service connection.

Held: when the ESN is altered, the offence under Section 65 of IT Act is attracted

Section 66B: Stolen Computer Resource or Communication Device

- Section 411 IPC (stolen property)
- Illustrations
- Buying stolen iPhone?
- SIM swapping/cloning
- ATM card skimming

THIS STORY IS FROM MARCH 31, 2023

Gone in 4 minutes: Milkman loses Rs 75,000 saved for wife's medicines in ATM card fraud in Mumbai

V Narayan / TNN / Updated: Mar 31, 2023, 07:32 IST

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Section 66C & 66D

- **Identity Theft**
- Identity includes your virtual identity in the form of electronic signatures, password, unique identification features [biometric details]
- **Cheating by personation** using computer resource/communication device
- Eg:Hari, a 27-year-old investment banker from Bengaluru, has been staying abroad for years. He had a credit card which he wasn't using anymore nor did he get it cancelled. One day, he received a call from his bank. He was informed he had exhausted his credit limit and the last date to clear his dues was coming closer. Shocked, he realised his financial records had been stolen and misused.

Section 66C & 66D

- The **Bank NSP case** (2013) is the one where a management trainee of the bank was engaged to be married. The couple exchanged many emails using the company computers. After some time the two broke up and the girl created fraudulent email ids such as **"Indianbarassociations"** and sent emails to the boy's foreign clients. She used the banks computer to do this. The boy's company lost a large number of clients and took the bank to court.
- **National Association of Software and Service Companies vs Ajay Sood & Others (2005)** The defendants were operating a placement agency involved in head-hunting and recruitment. In order to obtain personal data, which they could use for purposes of head-hunting, the defendants composed and sent e-mails to third parties in the name of Nasscom.

Digital Arrest

- **SC has taken *suo motto* cognizance and** issued notices to all States and Union Territories seeking details of investigations and pending cases linked to the growing menace of '**digital arrest**' scams, in which cybercriminals impersonate police, enforcement, or judicial officials to extort money from citizens under the threat of arrest and property seizure.
- Complaint filed by a senior citizen couple from Ambala, Haryana, who were defrauded of ₹1.05 crore between September 3 and 16, 2025. The victims were reportedly contacted by fraudsters posing as officials of the CBI, Enforcement Directorate, and even the Supreme Court, who showed forged judicial orders via video calls and WhatsApp messages to threaten them with arrest and seizure of property unless they transferred funds.

Section 66E –Violation of Privacy

- Intentionally or Knowingly:
  - Captures
  - Publishes
  - Transmits

Private Area:
naked/undergarment clad genitals, pubic area, buttocks or female breast

- Without his or her consent
- Under circumstances violating the privacy of that person (Explanation (e))
- In the year 2013 an incident of voyeurism was reported from Delhi High Court where women Advocates were filmed on mobile phone in the ladies rest room. This incident was reported in the newspaper which provided an impetus for filing a PIL under Article 32 of Constitution of India before this Hon'ble Court namely **Binu Tamta & Anr vs High Court of Delhi**.
- "The Gender Sensitization and Sexual Harassment of Women at the Supreme Court of India (Prevention, Prohibition and Redressal) Regulations 2013

Section 66E –Violation of Privacy

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News / India / North / Gangrape accused say they also raped four ragpickers in the same Mumbai mill

Gangrape accused say they also raped four ragpickers in the same Mumbai mill

Qasim Bengali reveals details of previous sexual assaults, police say victims never approached them since they feared the rapists.

India Today Online
New Delhi
August 26, 2013 UPDATED: August 26, 2013 16:43 IST

Mumbai Police said that Qasim Bangali, the main accused in the Mumbai gangrape case confessed that he and his gang had raped four other women in the last one year at the same spot where 22-year-old photojournalist was gangraped.

Bangali, the gang leader was arrested on Sunday.

In the previous incidents no cases were registered as the victims were threatened by this gang, the Mumbai Police revelaed.

Also, gang use to harass women and couples coming to Shakti Mills quite often.

Rape victim forced to clean up the crime spot

Immediately, after the gang was done raping the 22-year-old photojournalist in Mumbai's Shakti Mill area, they forced the girl and her colleague to clean the crime spot.

The gang also filmed the act and took turns to rape her. Then they took the couple to a nearby station and warned them to keep shut regarding the incident.

NDTV

SECTIONS HOME | CITIES

Woman Gang-Raped By 6 In UP, Accused Filmed Act And Posted Video Online

हिंदी में पढ़ें

The survivor claiming that police only filed a case after the video went viral.

Cities | Press Trust of India | Updated: November 03, 2019 06:30 IST

TRENDING



Priyanka Chopra Jonas Indulges In Delhi's Famous 'Daulat Ki Chaat' (See Pics Inside)



2nd T20I Live: Rohit, Dhawan Dominate Bangladesh In Chase Of 154



EMAIL PRINT



The incident happened in Mau police station area on Monday. (Representational image)

News / Crime /

Rajasthan: 2 men gangrape minor, film video, circulate on social media

The incident took place on July 25 when the woman had gone to attend a natural call. The accused took the girl to a secluded place and then raped her, said the police stain in-charge adding accused Ramdhan filmed the incident on his mobile phone and later circulated it.

Press Trust of India
Bikaner
August 7, 2019 UPDATED: August 7, 2019 02:18 IST



The accused are absconding but the police hope to nab them soon, police station in-charge Bhagwan Sahay Meena said.

Section 66E –Violation of Privacy

NDTV

SECTIONS HOME | ALL INDIA

4 Fabindia Staffers Charge-Sheeted In 2015 Snooping Case

The police has stated in the charge sheet that a CCTV camera was installed on the wall right outside the trial room.

All India | Press Trust of India | Updated: September 10, 2017 23:35 IST

TRENDING



2nd T20I Live: Dhawan Departs But Rohit Eyes 5th Ton, Victory For India



Priyanka Chopra Jonas Indulges In Delhi's Famous 'Daulat Ki Chaat' (See Pics Inside)





Smriti Irani Fabindia Case: She had alleged that a hidden camera was installed at the store

Ms Irani, then Human Resource Development minister, had in April 2015 alleged that a hidden camera was installed at the Fabindia store in north Goa's Candolim, nearly 9-km from Panaji, to snoop on the customers in the trial room.

Fabindia had initially denied that it had placed hidden cameras in any of its stores, including the Candolim outlet which Ms Irani visited.

The police has stated in the charge sheet that a CCTV camera was installed on the wall right outside the trial room and pointed towards the cubicle through a feet high ventilation gap on its side.

The arrests were made on the basis of a complaint filed by a Goa BJP legislator.

The four persons were charged under IPC sections 354 (outraging modesty), 354-C (voyeurism), 509 (intrusion of privacy) and 66E of the Information Technology Act (capturing, publishing image of private area of any person without his/her consent).

COMMENT

Sections: 354C & 354D IPC (CL Amendment Act 2013)

Voyeurism

354C. Any man who watches, or captures the image of a woman engaging in a private act in circumstances where she would usually have the expectation of not being observed either by the perpetrator or by any other person at the behest of the perpetrator or disseminates such image shall be punished on first conviction with imprisonment of either description for a term which shall not be less than one year, but which may extend to three years, and shall also be liable to fine, and be punished on a second or subsequent conviction, with imprisonment of either description for a term which shall not be less than three years, but which may extend to seven years, and shall also be liable to fine.

Explanation 1.—For the purpose of this section, "private act" includes an act of watching carried out in a place which, in the circumstances, would reasonably be expected to provide privacy and where the victim's genitals, posterior or breasts are exposed or covered only in underwear; or the victim is using a lavatory; or the victim is doing a sexual act that is not of a kind ordinarily done in public.

Explanation 2.—Where the victim consents to the capture of the images or any act, but not to their dissemination to third persons and where such image or act is disseminated, such dissemination shall be considered an offence under this section.

Stalking.

354D. (*1*) Any man who—

(*i*) follows a woman and contacts, or attempts to contact such woman to foster personal interaction repeatedly despite a clear indication of disinterest by such woman; or

(*ii*) monitors the use by a woman of the internet, email or any other form of electronic communication,

commits the offence of stalking:

Provided that such conduct shall not amount to stalking if the man who pursued it proves that—

(*i*) it was pursued for the purpose of preventing or detecting crime and the man accused of stalking had been entrusted with the responsibility of prevention and detection of crime by the State; or

(*ii*) it was pursued under any law or to comply with any condition or requirement imposed by any person under any law; or

(*iii*) in the particular circumstances such conduct was reasonable and justified.

(*2*) Whoever commits the offence of stalking shall be punished on first conviction with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine; and be punished on a second or subsequent conviction, with imprisonment of either description for a term which may extend to five years, and shall also be liable to fine.'.

Section 66E –Violation of Privacy

IT professional arrested in Kerala for voyeurism while wearing a burqa

The man, a B.Tech graduate, was booked for the offences under sections 354(C) (Voyeurism) and 419 (Impersonation) of the IPC and Section 66 E of the Information Technology Act on the same day, police said.

By: PTI

Kochi | August 17, 2023 12:20 IST

NewsGuard

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Assembly Elections 2022 Live Updates

Section 66F –Cyber-Terrorism

- It is committed with intent to **threaten unity, integrity, security or sovereignty of India or to strike terror** in people or any section of the people:
  - Denying access to authorized persons to access CR;
  - Unauthorized access
  - Computer contaminant

Death/ injury;
Destruction of property;
Critical information infrastructure (CII)

Section 66F –Cyber-Terrorism

- **Section 66 F (B):**
- Knowingly or intentionally penetrates or accesses a computer resource without authorization or exceeding authorized access, and by means of such conduct
- Obtains access to information, data or computer database
- Restricted for reasons of the security of the State or foreign relations; or
- Any restricted information, data or computer database, with reasons to believe that such information, data or computer database so obtained may be used to cause or likely to cause **injury** to the *interests of the sovereignty and integrity of India, the security of the State, friendly relations with foreign States, public order, decency or morality, or in relation to contempt of court, defamation or incitement to an offence*, or to *the advantage of any foreign nation, group of individuals or otherwise*
- Imprisonment for life

Mumbai: Man convicted, sentenced to life for cyber terrorism

Anees Ansari was arrested in October 2014 for conspiracy to attack an American school in Mumbai.

Written by Sadaf Modak Follow
Mumbai | Updated: October 26, 2022 4:17:34 pm

NewsGuard

A Mumbai sessions court on Friday convicted a **32-year-old computer engineer and sentenced him to life imprisonment** on charges which included cyber terrorism. Anees Ansari was arrested in October 2014 and had been behind bars since on allegations that he had used the computer and internet service of the private company he worked at to procure information towards planning a conspiracy to attack an American School in the Bandra Kurla Complex area of the city.

The court found him guilty under various sections, including 66 (F) (cyber terrorism), of the Information Technology Act, under which he was sentenced to life imprisonment.

Additional Sessions Judge Dr A A Joglekar also convicted Ansari under Section 115 (abetment of offence punishable with death or imprisonment for life) read with Section 120B (criminal conspiracy) of the Indian Penal Code (IPC). He has been sentenced to five years in jail under this section. He has also been directed to pay a fine of Rs 25,000 under Section 43(a) of the IT Act (compensation for failure to protect data).

Gujarat Police file FIR against SFJ chief Pannun for threatening to disrupt ICC World Cup

BY IANS



Obscenity Laws

- Also called content-based offences
- Types of content:
  - **Erotica**: art or literature material produced around sexual theme but not wholly produced or principally for sexual arousal
  - **Pornography**: material produced solely for purpose of sexual arousal
  - **Obscene**: material likely to deprave and corrupt persons
  - **Extreme** content: child-abuse images and violent or extremely obscene content



Obscenity Test – UK

- **Hicklin Test [*Regina v. Hicklin*, 1868]: Cockburn, CJ –**
  - ***The test of obscenity is this, whether the tendency of the matter charged as obscenity is to deprave and corrupt those whose minds are open to such immoral influences, and into whose hands a publication of this sort may fall.***
- Judging what's obscene by asking the most sensitive and easily-offended person whether something is obscene? [**weak mind**]
- This sort of publication may fall – accidental

- **Obscene Publication Act 1959 [UK] –** replaced the weak and vulnerable minds test with that of the **average, reasonable and strong-minded person.**
- Persons who are likely to read, see or hear the contents of publication

Obscenity Test – US

- Obscenity is a category of speech unprotected by the First Amendment.
- ***Miller v. California* (1973):** three-prong test for obscenity, called '**Miller Test**':

1. Whether 'the **average person**', applying **contemporary community standards** would find the **work, taken as a whole**, appeals to the **prurient** interest,
2. Whether the work depicts or describes, in a **patently offensive** way the sexual conduct,
3. Whether the work, taken as a whole, **lacks serious literary, artistic, political or scientific value**.

Obscenity Test – India

- ***Ranjit Udeshi v. State of Maharashtra (1965)***
- Modified version of Hicklin Test in India
- Constitutionality of **Section 292 IPC** challenged by Ranjit Udeshi – bookseller- found to have unexpurgated copy of D H Lawrence's Lady Chatterley's Lover.
- Held it constitutional valid- freedom is subject to reasonable restrictions which may be thought necessary in the interest of the general public and one such is the interest of *public decency and morality (Art.19(2)).*
- Held obscenity *without a preponderating social purpose or profit* cannot have the constitutional protection of free speech.
- Purpose of the law was to protect 'not those who can protect themselves but those *whose prurient minds take delight and secret sexual pleasure from erotic writings*' [weakest & vulnerable mind]

Obscenity Test – India

- Amendment of Section 292 IPC – defines obscenity.

- **Section 292 in The Indian Penal Code**

[292. Sale, etc., of obscene books, etc.— [261] [(1) For the purposes of sub-section (2), a book, pamphlet, paper, writing, drawing, painting, representation, figure or any other object, shall be deemed to be obscene **if it is lascivious or appeals to the prurient interest or if its effect, or (where it comprises two or more distinct items) the effect of any one of its items, is, if taken as a whole, such as to tend to deprave and corrupt person, who are likely, having regard to all relevant circumstances, to read, see or hear the matter contained or embodied in it.**]

Obscenity Test – India

- ***Bobby Art International & Ors. v. Om Pal Singh Hoon*** (1996) this Court while dealing with the question of obscenity in the context of film called **Bandit Queen** pointed out that the so-called objectionable scenes in the film have to be considered in the context of the message that the film was seeking to transmit in respect of social menace of torture and violence against a helpless female child which transformed her into a dreaded dacoit.

- ***Ajay Goswami v. Union of India*** (2007) – whether a particular work is obscene regard must be had to contemporary mores and national standards.

Obscenity Test – India

- ***Aveek Sarkar v. State of WB*** (2014):
- We have, therefore, to apply the "community standard test" rather than "Hicklin test" to determine what is "obscenity".
- Photograph and the article in the light of the message it wants to convey, that is to eradicate the evil of racism and apartheid in the society and to promote love and marriage between white skinned man and a black skinned woman.
- When viewed in that angle, we are not prepared to say that the picture or the article which was reproduced by Sports World and the Anandabazar Patrika be said to be objectionable so as to initiate proceedings under Section 292 IPC or under Section 4 of the Indecent Representation of Women (Prohibition) Act, 1986.

Cyber-Obscenity – Section 67

- The **ingredients** of offence:

a) Publication or transmission in the electronic form

b) Any material lascivious or appeals to the prurient interest

c) Tendency to deprave and corrupt persons

d) Likely (audience)

e) To read, see or hear the matter contained or embodied in electronic form

- Section heavily drawn from Sec.292 (1) IPC. Except punishment

Punishment under Section 67 IT Act	**Punishment under Section 292 IPC**
On first conviction with imprisonment of either description for a term which may extend to **three years and with fine which may extend to five lakh rupees** and in the event of second or subsequent conviction with imprisonment of either description for a term which may extend to **five years and also with fine which may extend to ten lakh rupees.**	On first conviction with imprisonment of either description for a term which may extend to **two years, and with fine which may extend to two thousand rupees**, and, in the event of a second or subsequent conviction, with imprisonment of either description for a term which may extend to **five years, and also with fine which may extend to five thousand rupees**

Cyber-Obscenity – Section 67

- **Imran Khan v. State of UP (2025)**
- Accused posted certain provocative message on social media resulting in assembly of about 600-700 persons belonging to Muslim community for procession without permission
- Charged under Sec.67 of IT Act
- Allahabad HC held "**mere liking a post did not amount to publishing or transmitting".**
- Further, Sec. 67 pertains specifically to obscene material and not to **provocative content**.
- Sec. 67 does not prescribe any punishment for content that is merely provocative but not obscene.

Cyber-Obscenity – Section 67A

- The **ingredients** of offence:

a) Publication or transmission in the electronic form

b) Any material containing **sexually explicit act or conduct**

- ***State of West Bengal v. Boxi*** (2018)
- **Revenge Porn:** Animesh Boxi was in a relationship with the victim for three years prior to the incident that occurred in July 2017. Over the course of the relationship, Boxi demanded intimate photos from the victim and allegedly "hacked into her phone" to get his hands on them. He then started blackmailing her, saying that he would upload the photos and videos online if she refused to spend time with or "go for outings with" him . A few days later, the victim's brother discovered the nude pictures and videos on a porn site (PornHub) with the video which gave the victim's name and also identified her father.
- The Court also found Boxi guilty of transmitting private images online contrary to Section 66E, Section 67 and 67A of the IT Act as well as identity theft under Section 66C as he had hacked into the victim's phone and taken the pictures secretly.
- The Judicial Magistrate for the Tamluk District Court in West Bengal sentenced him to 5 years imprisonment along with a fine of Rs. 9,000

Cyber-Obscenity – Section 67A

- ***Akshay Sripad Rao v. The State of Maharashtra*** **(2017)**
- The contents of FIR revealed that the accused had disrobed the victim, made physical contact and advances involving unwelcome and explicit sexual overtures. He had also taken her nude photographs and uploaded them on 145 different porn websites. Forensic analysis of accused's seized laptop and mobile phone revealed that he had uploaded victim's photos from these devices.
- Held: The photos uploaded on various porn sites contain sexually explicit act/conduct.
- The material on record prima facie shows that accused has committed an offence falling under Section 67, 67A IT Act & 354 A & 354 D IPC.

Cyber-Obscenity – Section 67A

- Senior Advocate Harish Salve, appearing for the actors, told the bench that, "All we are seeking is protection. These people are not criminals. To have police chasing them will create fear. Let the police be kept away. These are young people who have come together and created a project. If they have crossed the line, the content can be pulled down, but let the police be kept out."

College Romance web series: SC extends protection from arrest to director, actors

The high court, while ordering the registration of FIR, had ruled that the language used in the series was obscene, profane and vulgar, and will deprave and corrupt the minds of young people.

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Cyber-Obscenity – Section 67 B

- Exceptions applicable to Sections 67, 67 A & 67 B

- **Child pornography [section 67 B]**

- **THE PROTECTION OF CHILDREN FROM SEXUAL OFFENCES (AMENDMENT) ACT, 2019**
- "**child pornography**" means any visual depiction of sexually explicit conduct involving a child which include photograph, video, digital or computer generated image indistinguishable from an actual child, and image created, adapted, or modified, but appear to depict a child;

Cyber-Obscenity

- **THE PROTECTION OF CHILDREN FROM SEXUAL OFFENCES (AMENDMENT) ACT, 2019**

"14. (*1*) Whoever uses a child or children for pornographic purposes shall be punished with imprisonment for a term which shall not be less than five years and shall also be liable to fine, and in the event of second or subsequent conviction with imprisonment for a term which shall not be less than seven years and also be liable to fine.

(*2*) Whoever using a child or children for pornographic purposes under sub-section (*1*), commits an offence referred to in section 3 or section 5 or section 7 or section 9 by directly participating in such pornographic acts, shall be punished for the said offences also under section 4, section 6, section 8 and section 10, respectively, in addition to the punishment provided in sub-section (*1*).".

8. For section 15 of the principal Act, the following section shall be substituted, namely:—

"15. (*1*) Any person, who stores or possesses pornographic material in any form involving a child, but fails to delete or destroy or report the same to the designated authority, as may be prescribed, with an intention to share or transmit child pornography, shall be liable to fine not less than five thousand rupees, and in the event of second or subsequent offence, with fine which shall not be less than ten thousand rupees.

(*2*) Any person, who stores or possesses pornographic material in any form involving a child for transmitting or propagating or displaying or distributing in any manner at any time except for the purpose of reporting, as may be prescribed, or for use as evidence in court, shall be punished with imprisonment of either description which may extend to three years, or with fine, or with both.

(*3*) Any person, who stores or possesses pornographic material in any form involving a child for commercial purpose shall be punished on the first conviction with imprisonment of either description which shall not be less than three years which may extend to five years, or with fine, or with both, and in the event of second or subsequent conviction, with imprisonment of either description which shall not be less than five years which may extend to seven years and shall also be liable to fine.".

Cyber-Obscenity

Just Rights for Children Alliance & Anr. v. S. Harish & Ors. (2024)

- SC set aside Madras HC order and held that mere downloading and storage of child pornography is an offence under sec.15 of POCSO and 67 B IT Act.
- Main questions:
- Whether the act of downloading and viewing child pornography without transmission or publication violates Sec.67 B of the IT Act?
- Whether possession and failure to delete child pornography constitute an offence under Sec. 15 POCSO?